

ASCII MASTER FLOW – PANEL 1/10: The central question and the analytical axes of sovereignty

CENTRAL QUESTION -> where is final authority LOCATED, how is it STRUCTURED, how far
is it LIMITED?

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ROOT CONCEPT: supreme, final and authoritative power within a political community

NOT mere force (a bandit coerces) | NOT the government of the day | NOT the state

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INTERNAL/EXTERNAL	LEGAL/POLITICAL	DE JURE/DE FACTO	TITULAR/ACTUAL
supremacy within	competent law-	lawful title vs	formal dignity vs
vs independence	maker vs the	effective	real power of
among states	real power	obedience	decision

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CONTROL: distinguish the axes FIRST, locate the thinker SECOND, adjudicate LAST.

ASCII MASTER FLOW – PANEL 2/10: Bodin: absolute, perpetual, undivided - and still bounded

CONDITION: confessional civil war; churches, estates and feudal lords each claim finality

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DEFINITION -> sovereignty is the ABSOLUTE and PERPETUAL power of a commonwealth

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ABSOLUTE

no human superior
inside the realm

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PRE-EMINENT MARK -> power to MAKE and UNMAKE law for all subjects in general,
without the consent of any superior

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LIMITS THAT SURVIVE -> divine law | natural law | fundamental laws (leges imperii)

LEGIBUS SOLUTUS -> released from ORDINARY POSITIVE LAW only; not from higher law

TRAP -> Bodin is not Hobbes before Hobbes; supreme is not morally empty

VERDICT -> first systematic theory and indispensable vocabulary; institutional
guarantees against abuse remain weak.

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PERPETUAL

attached to the OFFICE,
not to a magistrate

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UNDIVIDED

two final wills would
revive civil war

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ASCII MASTER FLOW – PANEL 3/10: Austin's command theory: the mechanism of legal sovereignty

PROJECT -> analytical jurisprudence: define law and sovereignty with juristic precision

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DETERMINATE HUMAN SUPERIOR (an identifiable person or body, never an abstraction)

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v receives

HABITUAL OBEDIENCE from the BULK of a given society

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v and renders

OBEDIENCE TO NO OTHER SUPERIOR

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v therefore

COMMAND --> SANCTION --> DUTY --> POSITIVE LAW

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DETERMINATE	ABSOLUTE	INDIVISIBLE	ILLIMITABLE	INALIENABLE
identifiable	no legal	finality	no superior	transfer ends
	limit	unpartitionable		sovereignty

SOURCE -> The Province of Jurisprudence Determined, 1832

TRAP -> Austin's sovereign is NOT the state; it is a determinate superior.

ASCII MASTER FLOW – PANEL 4/10: The external critique of Austin and the democracy verdict

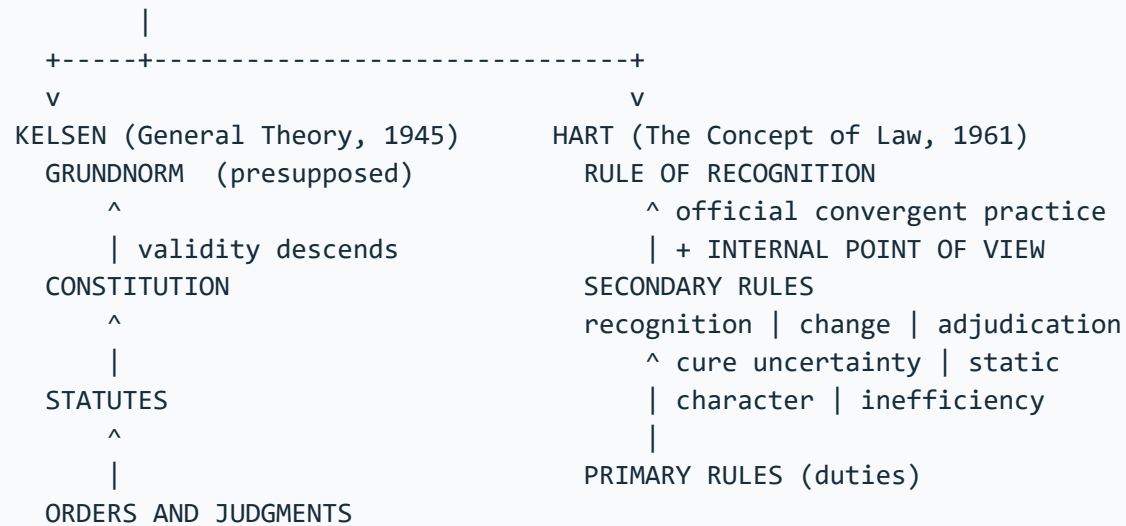
HEAD	OBJECTION	MONIST REPLY / RESIDUAL
federalism	no single determinate superior in a federation	finality relocated to the constituent power; that SHIFTS the problem
international law	binding rules exist with no world sovereign	conceptual purity preserved, but law is over-narrowed
custom	obedience can PRECEDE command	tacit adoption by courts; widely judged artificial
popular sovereignty	the people rule but are legally indeterminate	legal indeterminacy admitted; political finality conceded
Maine: Ranjit Singh	despotic power coexisted with untouched custom	authority is often personal and socially embedded

DEMOCRACY -> narrow legal sense: compatible in form
-> deeper political sense: derivative, divided, rights-bound = uneasy

CONTROL -> answer by DEGREE-JUDGMENT, never by a flat yes or no.

ASCII MASTER FLOW – PANEL 5/10: Kelsen and Hart: the internal repair of supreme legal authority

DIAGNOSIS -> the command theory fails on SUCCESSION, PERSISTENCE and
POWER-CONFERRING RULES



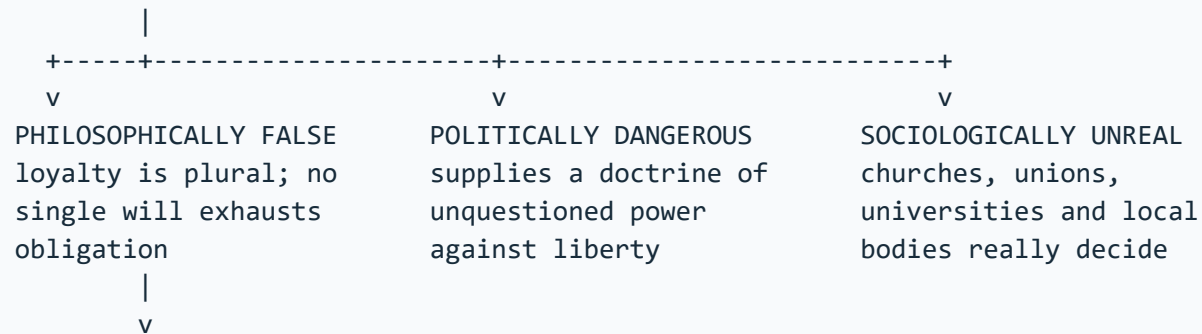
TERMINOLOGY -> having an obligation (internal) vs being obliged (gunman coercion)

PLACEMENT -> both keep SUPREME LEGAL AUTHORITY and discard the PERSONAL sovereign

TRAP -> never merge Kelsen, Hart and Laski; never date Kelsen to 1961.

ASCII MASTER FLOW – PANEL 6/10: Laski's pluralism: the rejection and its replacement

TARGET -> the monistic doctrine of absolute, indivisible, unlimited state sovereignty



REPLACEMENT ARCHITECTURE

- +--> the state is ONE ASSOCIATION AMONG MANY, though uniquely important
- +--> authority is DIVIDED AND SHARED with functional associations
- +--> the state must COMPETE FOR ALLEGIANCE by what it does

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TRAP -> pluralist, NOT anarchist: he limits the state, he does not abolish it
VERDICT -> decisive corrective on liberty; incomplete on coordination, which is
           why examiners ask whether it is a satisfactory position.

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ASCII MASTER FLOW – PANEL 7/10: Kautilya inside the state: seven limbs and the calibrated rod

CLAIM -> sovereignty is the CAPACITY of a state organism, not one man's bare will

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SAPTĀṅGA (seven limbs)

svāmī	ruler	-> headship and direction
amātya	ministers	-> counsel, administration, execution
janapada	territory/people	-> the productive social base
durga	fortified place	-> security and protection
kośa	treasury	-> the material basis of rule
daṇḍa	coercive force	-> enforcement, punishment, defence
mitra	ally	-> external support in the interstate order

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DANḌANĪTĪ, THE CALIBRATION DIAL

too little	<----- proper ----->	too much
MĀTSYA-NYĀYA	order + welfare	TYRANNY
the strong devour the weak	(yogakṣema)	revolt, ruined
		janapada, empty kośa

TRAP -> the svāmī is DHARMA-BOUND; he is not Austin's illimitable superior.

ASCII MASTER FLOW – PANEL 8/10: Kautilya outside the state: circle, six-fold policy and relevance

SPATIAL LAYER -> the MAṆḌALA: authority is measured against neighbours

[neighbour's neighbour] = natural ALLY (shares a rival)

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[immediate neighbour] = natural RIVAL (shares a border)

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[the aspiring ruler] = vijigīṣu

MAXIM -> no permanent friend and no permanent enemy, only interests

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ṢĀḌGUNYA, the six-fold operational policy

sandhi peace | vighraha hostility | yāna advance

āsana poised inaction | saṃśraya shelter | dvaidhībhāva dual policy

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ETHICAL FRAME -> YOGAKṢEMA: security plus well-being is the ruler's duty

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MODERN RELEVANCE -> by THEME: state capacity, fiscal strength, intelligence,

calibrated enforcement, strategic autonomy, welfare obligation

LIMIT -> SELECTIVE APPROPRIATION of principles, never reproduction of monarchy.

ASCII MASTER FLOW – PANEL 9/10: Comparison grid and the objection-reply-residual engine

AXIS	BODIN	AUSTIN	LASKI	KAUTILYA
located in	supreme	determinate	no single	svāmī within
	law-giver	superior	locus	saptāṅga
absolute?	yes, with	yes, in	no	strong but
	higher law	legal form		dharma-bound
divisible?	no	no	yes	organically
				coordinated
associations	secondary	subordinate	autonomous	constitutive
core anxiety	civil war	juristic	liberty	survival and
		clarity		welfare

AUSTIN vs KAUTILYA -> command/obedience/sanction against rule/administration/
welfare/coercion/strategy

CRITICAL ENGINE -> OBJECTION -> MONIST REPLY -> RESIDUAL DIFFICULTY

democracy -> legal finality retained -> authority still derivative and divided
federalism -> constituent power -> relocation is not proof of one superior
pluralism -> shared is not sovereign -> monism may misdescribe plural life

ORDERING RULE -> internal critique (Kelsen, Hart) first, external critique second.

ASCII MASTER FLOW – PANEL 10/10: Globalization, standing traps and the reusable answer spine

SAME EVIDENCE -> treaties | trade regimes | supranational adjudication | flows

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EROSION THESIS

authority leaks upward and outward

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TRANSFORMATION / RESILIENCE THESIS

sovereignty is pooled, constrained,
negotiated and networked

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DECISIVE DISTINCTION -> legal independence vs practical interdependence

PERSISTENT CLAIMS -> war | treaty | currency | membership

VERDICT -> RECONFIGURED, not abolished

TRAP CHECK -> Austin's sovereign is not the state | Laski is not an anarchist |
Bodin is not lawless | svāmī is not illimitable | Kelsen 1945, Hart 1961 |
sovereignty has not disappeared

ANSWER SPINE -> 1 decode the directive and name the owner-thinker

2 open with the taxonomy of sovereignty

3 state the doctrine in the thinker's own terms

4 objection and reply, objector named

5 graded verdict

TIERS -> 10 marks: steps 1-3 and a verdict; 15: full spine and one objection;

20: full spine, internal then external critique, and a comparison close.